

		“[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ [citation] If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [citation]” (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [internal citations omitted].) Plaintiffs contend that through discovery and the recent completion of Marco Gutierrez’s deposition, they have acquired information regarding the alleged wrongdoing perpetrated by Defendants and Marco Gutierrez’s son, Mark. Plaintiffs now move for leave to file a First Amended Complaint to add Mark A. Gutierrez, individually and dba Mark’s Construction Repair, as a new defendant, and to add the following causes of action: fraud (concealment and intentional misrepresentation), financial elder abuse, and violation of Bus. & Prof. Code § 17200 et seq. The court finds that Plaintiffs’ counsel’s declaration and proposed pleading substantially complies with California Rules of Court, rule 3.1324. (See Kern Decl., ¶¶ 3-7, Exhs. A and B.) In sum, the court grants the motion. Plaintiffs SHALL separately file the proposed First Amended Complaint attached to the Kern Declaration as Exhibit A within five days. Plaintiffs to give notice.
6	Hawkins vs. Hyatt Corporation	<u>Motion for Leave (re Cross Complaint)</u> The court GRANTS the unopposed Motion for Leave to File a Cross-Complaint brought by Defendant HYATT